GOVERNMENT OF INDIA

Ministry of Law & Justice

Justice,Integrity, Progress

Confidential and Proprietory
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SHRI NARENDRA MODI

HONORABLE PRIME MINISTER, INDIA



MESSAGE

SHRI ARJUN RAM MEGHWAL



HONORABLE MINISTER,

MINISTRY OF LAW and JUSTICE

MESSAGE

SHRI MUNINDRA KUMAR

DIRECTOR GENERAL, CHAMBER OF COMMERCE AND INDUSTRIES OF INDIA



MESSAGE

A transparent, efficient, and accessible legal system forms the cornerstone of a strong democracy, economic confidence, and good governance. The Ministry of Law and Justice plays a vital role in strengthening the legal framework, modernizing judicial administration, promoting legal reforms, improving access to justice, and ensuring that India's governance systems continue to support inclusive and sustainable development.

The Chamber of Commerce and Industries of India (CCI India) recognizes that a predictable and efficient legal ecosystem is essential for fostering investment, entrepreneurship, innovation, ease of doing business, and institutional trust. Through policy advocacy, stakeholder engagement, legal awareness initiatives, capacity building, research collaboration, and industry dialogue, CCI India remains committed to supporting the Ministry's efforts in strengthening India's legal and regulatory environment.

This Knowledge Paper provides a comprehensive overview of the Ministry's strategic priorities, legislative reforms, institutional framework, policy initiatives, and opportunities for collaboration across legal modernization, commercial law, digital justice, alternative dispute resolution, legal technology, and governance innovation. It also highlights areas where partnerships between government, industry, academia, and legal institutions can contribute to strengthening the justice delivery system.

The publication is intended to serve as a strategic resource for policymakers, legal professionals, judicial institutions, industry leaders, investors, academic organizations, researchers, and development partners. By encouraging informed dialogue and collaborative engagement, it seeks to support legal excellence, institutional efficiency, and a governance framework that enables sustainable economic growth.

As India continues to strengthen its democratic institutions and legal systems, collaborative efforts will remain essential in ensuring that justice, transparency, and accountability continue to drive national development. CCI India remains committed to supporting the Ministry of Law and Justice in advancing these shared objectives.

Munindra Kumar
Director General
CCI India

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Preface

The Ministry of Law and Justice occupies a singular position within the architecture of the Government of India. As the institution entrusted with legislative drafting, constitutional advisory, and the administration of justice, it does not merely service one sector of national life it underwrites the legal predictability on which every other sector depends. Contract enforcement, regulatory certainty, investor confidence, citizen rights, and the federal balance between the Union and the States are all, in the final analysis, functions of how effectively this Ministry and the judicial ecosystem it supports are able to operate. No infrastructure corridor, manufacturing cluster, digital economy initiative, or social protection scheme can deliver its intended value if the underlying legal and dispute-resolution architecture is slow, opaque, or inaccessible.

India's pursuit of Viksit Bharat 2047 a developed nation status by the centenary of independence is anchored as much in legal-institutional capacity as in physical and digital infrastructure. The World Bank's Ease of Doing Business diagnostics, repeated investor surveys, and India's own Economic Survey have consistently identified contract enforcement timelines and judicial pendency as material drags on capital formation and productivity. At the same time, the period 2020–2026 has witnessed an unprecedented wave of legal-institutional modernisation: the rollout of e-Courts Phase III, the enactment of the Mediation Act 2023 and the Digital Personal Data Protection Act 2023, expansion of Tele-Law and Nyaya Bandhu, and a sustained push toward alternative dispute resolution.

This Knowledge Paper has been prepared with a single, disciplined purpose: to provide the Ministry of Law and Justice, NITI Aayog, and allied institutions of the Government of India with a rigorous, evidence-based assessment of where structured collaboration with industry and specifically with the Chamber of Commerce and Industry of India (CCI India) can accelerate the Ministry's own stated priorities. It is not a promotional document. Every section has been constructed to stand on independent analytical merit, grounded in the Ministry's actual budgetary allocations, scheme architecture, and performance data, and is intended to be read by senior policymakers as a working instrument rather than a brochure.

CCI India's vision in presenting this paper is to position itself not as a vendor or a one-time event partner, but as a long-horizon institutional collaborator capable of mobilising industry capital, technology, legal-tech innovation, professional expertise, and grassroots delivery capacity in direct support of the Ministry's mandate spanning judicial infrastructure modernisation, legal aid penetration, legislative stakeholder consultation, dispute resolution capacity building, and the legal-tech startup ecosystem.

Chamber of Commerce and Industry of India (CCI India)

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About CCI India

CCI India (The Chamber of Commerce and Industry of India) is a premier national business chamber dedicated to fostering economic growth, industry development, entrepreneurship, innovation, and investment promotion across India. As the voice of Indian business and industry, CCI India serves as a bridge between government, industry, startups, academia, investors, and civil society, facilitating meaningful collaboration for nation-building and sustainable development.

Through policy advocacy, business facilitation, research, stakeholder engagement, capacity building, and strategic partnerships, CCI India works to create an enabling environment for enterprises of all sizes. The Chamber actively supports key national initiatives such as Startup India, Make in India, Digital India, Atmanirbhar Bharat, Skill India, and Viksit Bharat 2047 by connecting innovative enterprises with government opportunities and promoting inclusive economic development.

CCI India operates through sector-specific councils, industry forums, knowledge platforms, and state-level engagements that address emerging opportunities and challenges across sectors including manufacturing, agriculture, technology, healthcare, education, infrastructure, sustainability, MSMEs, and startups. The Chamber regularly organizes policy dialogues, investment summits, business delegations, workshops, conferences, and knowledge-sharing initiatives to strengthen India's economic ecosystem.

With a strong commitment to innovation, entrepreneurship, and public-private collaboration, CCI India strives to empower enterprises, facilitate investment, enhance competitiveness, and contribute to India's journey toward becoming a globally competitive and economically resilient nation. Its role as a knowledge partner and industry catalyst enables ministries, departments, state governments, startups, and businesses to collaborate effectively in achieving national development objectives.

Section 1: Introduction to the Ministry of Law and Justice

The Ministry of Law and Justice is among the oldest institutional structures of the Indian state, tracing its administrative lineage to 1833 and its modern constitutional form to the first Union Cabinet of independent India, where Dr. B.R. Ambedkar served as the inaugural Law Minister from 1947 to 1951. This continuity is not a matter of ceremonial heritage; it reflects the Ministry's foundational role in translating the constitutional vision of the Republic into operative legal machinery a role that has only intensified as India's economy, federal structure, and citizen base have grown in scale and complexity.

1.1 Constitutional and Institutional Mandate

The Ministry's mandate is defined through the Government of India (Allocation of Business) Rules, 1961, and operates through three departments, each performing a constitutionally distinct function. The Department of Legal Affairs serves as the principal legal advisor to the Union Government, manages the offices of the Attorney General and Solicitor General, and conducts litigation on behalf of the Union before the Supreme Court and High Courts. The Legislative Department is the drafting authority for all principal Central legislation Bills, Ordinances, and subordinate legislation and maintains custody of the statute book, including subjects under the Concurrent List such as personal law, contracts, and evidence. The Department of Justice administers the machinery of the judiciary itself: appointment processes for judges of the Supreme Court and High Courts, judicial infrastructure financing, and flagship missions for access to justice such as the National Legal Services Authority (NALSA), Tele-Law, and the e-Courts Mission.This tripartite structure gives the Ministry a rare dual character among Union Ministries: it is simultaneously a service department (advising and litigating on behalf of Government) and a constitutional-infrastructure department (financing and modernising the judiciary, which is itself a co-equal and independent branch of the State). This duality is the single most important fact for any institutional partner to understand collaboration must respect the separation of powers, supporting judicial infrastructure and access-to-justice delivery without ever appearing to influence adjudicatory outcomes.

1.2 Evolution and Governance Role

Since the 1990s, and with particular acceleration after 2014, the Ministry's functional emphasis has shifted from a purely advisory-litigative posture toward an explicit ‘justice delivery and reform’ orientation, formalised through the National Mission for Justice Delivery and Legal Reforms. The Mission articulates two structural objectives increasing access to justice by reducing delays and arrears, and enhancing accountability through structural changes and capacity-building and has become the budgetary and conceptual umbrella under which e-Courts, judicial infrastructure, and legal aid programmes are now organised.

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